

HOUSE No. 61

Text of a further amendment, offered by Mr. Michlewitz of Boston, to the Senate amendment (striking out all after the enacting clause and inserting in place thereof the text contained in Senate document numbered 17) to the House Bill making appropriations for fiscal year 2025 to provide for supplementing certain existing appropriations and for certain other activities and projects (House, No. 61). February 25, 2025.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

By striking out all after the enacting clause (inserted by amendment by the Senate) and inserting in place thereof the following:—

1 SECTION 1. To provide for supplementing certain items in the general appropriation act
2 and other appropriation acts for fiscal year 2025, the sums set forth in section 2A are hereby
3 appropriated from the Transitional Escrow Fund established in section 16 of chapter 76 of the
4 acts of 2021, as amended by section 4 of chapter 98 of the acts of 2022, unless specifically
5 designated otherwise in this act or in those appropriation acts, for the several purposes and
6 subject to the conditions specified in this act or in those appropriation acts, and subject to the
7 laws regulating the disbursement of public funds for the fiscal year ending June 30, 2025. These
8 sums shall be in addition to any amounts previously appropriated and made available for the
9 purposes of those items. These sums shall be made available through the fiscal year ending June
10 30, 2026.

11 SECTION 2A. To provide for certain unanticipated obligations of the commonwealth, to
12 provide for an alteration of purpose for current appropriations and to meet certain requirements

of law, the sums set forth in this section are hereby appropriated from the Transitional Escrow Fund established in section 16 of chapter 76 of the acts of 2021, as amended by section 4 of chapter 98 of the acts of 2022, unless specifically designated otherwise in this section, for the several purposes and subject to the conditions specified in this section, and subject to the laws regulating the disbursement of public funds for the fiscal year ending June 30, 2025. Except as otherwise stated, these sums shall be made available through the fiscal year ending June 30, 2026.

1599-2625 For purposes related to supportive services and safe shelter for unhoused families in the commonwealth; provided, that the secretary of administration and finance may transfer funds from this item to state agencies as defined in section 1 of chapter 29 of the General Laws; provided further, that the secretary of administration and finance shall notify the house and senate committees on ways and means not less than 14 days prior to any such transfer of funds from this item; provided further, that temporary respite sites shall be available to eligible families upon arrival in the commonwealth, subject to appropriation, rules, regulations and availability, for a period of not more than 30 days, subject to any extensions upon written certification by the secretary of housing and livable communities; provided further, that temporary respite sites shall be available for a period of not more than 30 days to families who appear eligible but are unable to provide sufficient documentation as required by clause (4) of subsection (b) of section 7, subject to appropriation, rules, regulations and availability; provided further, that temporary respite sites shall only be available to families who provide information sufficient to comply with paragraph (C¹/₂) of section 30 of chapter 23B of the General Laws; provided further, that the length of stay at a temporary respite site shall constitute a benefit received under the emergency housing assistance program for the purpose of calculating length

of stay limit under subparagraph (3) of paragraph (G) of said section 30 of said chapter 23B, added by section 3 of chapter 88 of the acts of 2024; provided further, that placement in a temporary respite site shall not make a family ineligible for the bridge shelter track after proving eligibility pursuant to section 7; provided further, that the executive office of housing and livable communities shall work with resettlement agencies to coordinate the provision of services to immigrant and refugee families and pregnant women in temporary respite centers; provided further, that the executive office shall continue to facilitate the provision of services to families and pregnant women in temporary respite centers; provided further, that funds appropriated in this item may be expended for any purpose under item 1599-0514 of section 2A of chapter 77 of the acts of 2023, item 1599-1213 of section 2A of chapter 88 of the acts of 2024 and items 7004-0101, 7004-0108 and 7004-9316 of section 2 of chapter 140 of the acts of 2024; provided further, that the secretary of administration and finance may transfer funds from this item to the Workforce Competitiveness Trust Fund, established in section 2WWW of said chapter 29, for work programs targeted at supporting the populations served by this item; and provided further, that reporting requirements under said item 1599-0514 of said section 2A of said chapter 77 and said item 1599-1213 of said section 2A of said chapter 88 shall apply to this item...\$425,000,000

SECTION 3. Section 30 of chapter 23B of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting after paragraph (C) the following paragraph:-

(C¹/₂)(1) The executive office shall require each individual adult applicant or beneficiary to disclose on their initial or subsequent application for emergency housing assistance benefits all prior criminal convictions and any pending charges for serious crimes, as defined by the executive office, whether in the commonwealth or another jurisdiction. The executive office shall not require prior convictions that have been sealed or expunged to be disclosed. Any adult

59 applicant or beneficiary who fails to disclose prior criminal convictions and pending charges for
60 serious crimes, as defined by the executive office, consistent with this paragraph shall not be
61 eligible for benefits and any existing benefits shall be terminated.

62 (2) The executive office shall obtain criminal offender record information from the
63 department of criminal justice information services for each individual adult applicant or
64 beneficiary prior to placement into the emergency housing assistance program. An adult
65 applicant or beneficiary who fails to consent to the executive office obtaining such criminal
66 offender record information consistent with this paragraph shall not be eligible for benefits and
67 any existing benefits shall be terminated. The executive office shall establish, through
68 regulations, protocols on information received from the department of criminal justice
69 information services.

70 (3) The executive office shall promulgate regulations placing limitations or exclusions on
71 individuals found to have criminal convictions or pending charges for serious crimes, as defined
72 by the executive office by regulation.

73 SECTION 4. Paragraph (G) of said section 30 of said chapter 23B, inserted by section 3
74 of chapter 88 of the acts of 2024, is hereby amended by striking out subparagraphs (3) through
75 (9), inclusive, and inserting in place thereof the following 6 subparagraphs:-

76 (3) A family with children or a pregnant woman with no other children that receives
77 benefits through the emergency housing assistance program shall, subject to appropriation and
78 rules and regulations, remain eligible for the program for not more than 6 consecutive months.

79 (4) Any family or pregnant woman with no other children may receive extensions upon
80 written certification of hardship by the secretary; provided, however, that hardship waivers shall

81 be granted by the secretary for a family with an individual who: (i) is qualified as a veteran under
82 clause Forty-third of section 7 of chapter 4 who is not enrolled in services specifically tailored to
83 veterans, including, but not limited to, those administered by the executive office of veterans
84 services; (ii) is under the age of 6; (iii) is at imminent risk of harm due to domestic violence; (iv)
85 is documented as having a disability; (v) has imminent pending placement in housing for the
86 entire family receiving benefits under the emergency housing assistance program; (vi) has a
87 high-risk pregnancy; or (vii) satisfies any additional criteria the secretary of housing and livable
88 communities deems necessary.

89 (5) The executive office shall limit the number of families and pregnant women with no
90 other children to be terminated from the emergency housing assistance program in any week due
91 to reaching the length of stay limit established in subparagraph (3). The executive office shall
92 provide notice not less than 90 days prior to the termination of benefits for each family and
93 pregnant woman.

94 (6) The executive office shall promulgate regulations or guidance for eligibility which
95 shall: (a) establish procedures for the termination of benefits pursuant to this paragraph,
96 including for a hardship waiver under subparagraph (4); and (b) allow a family with children or a
97 pregnant woman with no other children to reapply for the emergency housing assistance
98 program; provided, however, that eligibility determinations when reapplying for the program
99 shall be consistent with the guidance issued by the secretary of housing and livable communities.

100 (7) The executive office shall provide printed handouts to families with children and
101 pregnant women receiving benefits through the emergency housing assistance program which
102 shall include, but shall not be limited to, information about: (a) authorized training programs; (b)

approved training programs; (c) food resources, including food pantries; (d) services offered by resettlement agencies; (e) other housing programs; (f) other nonprofit or available resources the executive office deems necessary or helpful; and (g) the length of stay limit and extension process. All written information shall be translated into multiple languages and shall be available on the executive office's website.

(8) This paragraph shall apply during any period in which the secretary of housing and livable communities has determined that the shelter system is no longer able to meet all current and projected demand for shelter from eligible families considering the facts and circumstances then existing in the commonwealth.

SECTION 5. Said section 30 of said chapter 23B, as amended by said chapter 88, is hereby further amended by adding the following paragraph:-

(H) The executive office shall require each adult applicant or beneficiary that joins a family that is receiving emergency housing assistance benefits to provide notice to the executive office of any addition to the family and the executive office shall require a complete review of all information necessary to verify the individual's eligibility pursuant to this section and 760 CMR 67.00 or successor regulations. Any adult applicant or beneficiary who fails to report to the executive office for complete verification of requirements pursuant to this section or 760 CMR 67.00 or successor regulations shall not be eligible for benefits and any existing benefits shall be terminated.

SECTION 6. Item 1599-1213 of section 2A of said chapter 88 is hereby amended by inserting after the word "equity" the following words:- ; provided further, that a portion of such

funds shall be expended to rapidly rehouse families residing in temporary respite sites into permanent, stable housing.

SECTION 7. (a) For the purposes of this section, the following words shall, unless the context clearly requires otherwise, have the following meanings:

“Emergency housing assistance program”, a program of emergency housing assistance pursuant to section 30 of chapter 23B of the General Laws and funded by item 7004-0101 of section 2 of chapter 140 of the acts of 2024.

“Executive office”, the executive office of housing and livable communities.

(b) Notwithstanding item 7004-0101 of section 2 of chapter 140 of the acts of 2024, the executive office shall:

(1) require families whose income exceeds 200 per cent of the federal poverty level for 4 consecutive months to be deemed ineligible for the emergency housing assistance program;

(2) require that all emergency housing assistance program benefits under said item 7004-0101 of said section 2 of said chapter 140 shall only be provided to families consisting entirely of residents of the commonwealth who are citizens of the United States or persons lawfully admitted for permanent residence or otherwise permanently residing under the color of law in the United States, except in cases where a child in the family is a citizen of the United States, a person lawfully admitted for permanent residence or a person permanently residing under color of law in the United States;

(3) to the extent practicable, make best efforts to place a family receiving benefits under the emergency housing assistance program within 20 miles of the household’s home community;

(4) verify for each emergency housing assistance applicant, their: (a) identity; (b) Massachusetts residency pursuant to paragraph (5); (c) relationship status; (d) pregnancy status; and (e) other eligibility requirements in said item 7004-0101 of said section 2 of said chapter 140 and pursuant to 760 CMR 67.00 or any successor regulations, through third-party verification or otherwise, prior to placement in an emergency shelter; provided, however, executive office shall not be required to provide shelter to families who are unable to provide required verifications in this section prior to placement; provided, further, that the executive office may offer a case-specific waiver for exigent circumstances and at the discretion of the executive office; and provided further, that the executive office shall define through regulations said case-specific waivers which shall include, but shall not be limited to, waivers for: (i) an imminent threat of domestic violence; (ii) families with a family member who has a documented disability; (iii) a qualified veteran under clause Forty-third of section 7 of chapter 4 of the General Laws who are not enrolled in services specifically tailored to veterans, including, but not limited to, those administered by the executive office of veterans services; and (iv) families with a family member who has a high-risk pregnancy or who has recently given birth; and

(5) require each applicant for benefits under the emergency housing assistance program to establish residency in the commonwealth; provided, however, that an applicant shall be required to show an intent to remain in in the commonwealth, which may be shown through sources of verification accepted by the executive office; and provided further, that the executive office shall promulgate regulations on sources of acceptable verification which shall include, but shall not be limited to, documentation showing a person receives MassHealth, documentation showing a person receives public benefits in the commonwealth, a bill or other insurance documentation with an address, email, letter or statement from a licensed health care worker on

office letterhead or office email stating that the person lives in the commonwealth or a photo identification issued by the commonwealth.

SECTION 8. Notwithstanding section 30 of chapter 23B of the General Laws, beginning on December 31, 2025 through December 31, 2026, the total capacity of the emergency housing assistance program established pursuant to said section 30 of said chapter 23B shall not exceed 4,000 families.

SECTION 9. Notwithstanding any general or special law to the contrary, any funds expended after the effective date of this act for the purpose of providing services through or related to families and pregnant women served by the emergency housing assistance program pursuant to section 30 of chapter 23B of the General Laws shall be subject to a competitive bidding process.

SECTION 10. The executive office for administration and finance shall submit a biweekly report to the clerks of the senate and house of representatives and the house and senate committees on ways and means that shall include, but not be limited to: (i) reporting under item 1599-0514 of chapter 77 of the acts of 2023; (ii) reporting required under section 19 of chapter 88 of the acts of 2024; (iii) the total caseload of the emergency housing assistance program, delineated by rapid shelter track and bridge shelter track; (iv) the number of families who have applied for emergency assistance housing in the previous 14 days, delineated by rapid shelter track and bridge shelter track; (v) the number of families who were unable to provide the required verification during application as established under section 6 in the previous 14 days; (vi) the number of families who were unable to provide the required verifications but were granted a case-specific waiver by the secretary of housing and livable communities in the

190 previous 14 days; (vii) the number of families on the waitlist for services under the emergency
191 assistance housing program, delineated by rapid shelter track and bridge shelter track; (viii) a
192 description of the services provided to such families, delineated by rapid shelter track and bridge
193 shelter track; (ix) the total number of families who have exited the emergency assistance housing
194 program in the previous 14 days, delineated by rapid shelter track and bridge shelter track and
195 delineating length of stay in emergency shelter of each family, with information on housing
196 outcomes for each family including, but not limited to, exits to stable housing, transitional
197 housing, a homeless shelter or homelessness; (x) a summary of resources, programs and
198 assistance, including, but not limited to, HomeBASE, used by families who exited shelter in the
199 previous 14 days, delineated by rapid shelter track and bridge shelter track, and including the
200 length of time between when families apply for assistance and when they are approved, with
201 information on housing outcomes for each family including, but not limited to, exits to stable
202 housing, transitional housing, a homeless shelter or homelessness; (xi) the total number of
203 families who exited emergency shelter in the previous 14 days due to the length of stay limits,
204 delineated by rapid shelter track and bridge shelter track, and including information on resources
205 or supports for those families exiting; (xii) the total number of families on the waitlist who have
206 been placed in emergency shelter in the previous 14 days, delineated by rapid shelter track and
207 bridge shelter track; (xiii) the total number of individuals in the emergency assistance housing
208 program that are employed; (xiv) the average and median length of stay for families currently in
209 the emergency assistance housing program, delineated by rapid shelter track and bridge shelter
210 track; (xv) the total number of families who have applied for a hardship waiver established under
211 section 4 and were granted a hardship waiver by the secretary of housing and livable
212 communities in the previous 14 days; (xvi) the total number of hotel and motel rooms in use in

the previous 14 days, delineated by municipality; (xvii) the total number of hotel and motel rooms that have been phased out of emergency shelter use in the previous 14 days, delineated by municipality; (xviii) a summary of the reasons for which families within the emergency housing assistance program have become homeless, including whether they had previously applied for other forms of housing assistance and were delayed or denied in receiving such assistance immediately before becoming homeless, and the total number of families attributed to each reason; (xix) the weekly average per-family cost associated with housing families in the emergency housing assistance program; and (xx) the total estimated cost of the emergency assistance housing program for fiscal year 2026 based on projected changes to estimated caseload, capacity and other policy changes under this act.

SECTION 11. The executive office for administration and finance, in consultation with the executive office of housing and livable communities, shall submit a report not later than 60 days following the effective date of this act to the clerks of the senate and house of representatives and the senate and house committees on ways and means detailing a plan to phase out the use of hotels and motels for emergency housing assistance not later than December 31, 2025. The report shall include, but shall not be limited to: (i) the total number of hotel and motel rooms to be phased out; (ii) the planned number of hotel and motel rooms to be phased out each month; (iii) the planned date by which phasing out hotel and motel rooms is to be completed; (iv) the methodology to identify and prioritize hotel and motel rooms to phase out; (v) the communication protocols or plans to inform stakeholders of changes and support families exiting hotels; (vi) the total estimated savings due to phasing out hotel and motel rooms; and (vii) the monthly estimated savings due to phasing out hotel and motel rooms.

235 SECTION 12. The executive office of housing and livable communities, in coordination
236 with the department of state police, shall study the feasibility of conducting a background check
237 through the National Crime Information Center for each adult applicant or beneficiary placed in
238 the emergency housing assistance program. The study shall include, but not be limited to,
239 information on: (i) federal approvals necessary to conduct such background checks; (ii) projected
240 costs for conducting such background checks; and (iii) any impediments to conducting such
241 background checks, as determined by the executive office in consultation with the department of
242 state police in the course of the study. The executive office of housing and livable communities
243 shall submit a report summarizing the results of the study to the clerks of the senate and house of
244 representatives and the senate and house committees on ways and means not later than July 1,
245 2025.